

Ch.Prabhakar vs Smt Ch.Manjula Anitha on 25 February, 2022

THE HON'BLE SRI JUSTICE A. VENKATESHWARA REDDY

CRP Nos.1019 of 2017 and 972 of 2017

COMMON ORDER:

1. CRP No.972 of 2017 is filed assailing the order dated 17.06.2015 in IA No.1525 of 2014 in OP No.275 of 2014 on the file of the Judge, Family Court, Ranga Reddy District at L.B. Nagar and CRP No.1019 of 2017 is filed against the order dated 13.12.2016 in IA No.676 of 2016 in the said OP No.275 of 2014.
2. The petitioner/wife has filed IA No.1525 of 2014 under Section 5 of the Limitation Act to condone the delay of 161 days in filing an application to set aside the ex parte decree against her and that application was allowed, through the impugned order dated 17.06.2015. The same is under challenge in CRP No.972 of 2017.
3. The petitioner/wife has filed another application in IA No.676 of 2016 under Order-IX, Rule-13 of the Civil Procedure Code (for short 'CPC') to set aside the ex parte decree dated 29.04.2014 passed against her and the same was allowed, as per the order dated 13.12.2016. Assailing the said orders, CRP No.1019 of 2017 is filed.

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4. As both the IA Nos.1525 of 2014 and IA No.676 of 2016 were filed in OP No.275 of 2014 between the same parties, it is proposed to dispose of both the civil revision petitions through this

common order.

5. The brief facts of these cases are that the respondent/ husband has filed OP No.275 of 2014 on the file of the Judge, Family Court, Ranga Reddy District at L.B.Nagar, under Section 13 (1)(ia) of Hindu Marriage Act, 1955 for dissolution of marriage against his wife. As per the proceedings dated 11.04.2014 filed along with the paper book, there was an endorsement of the Process Server to the effect that when he went to serve notice on the wife, she refused to receive the same, such refusal was accepted as constructive service and as there was no representation, the matter was posted for ex parte evidence, finally after recording on 29.04.2014 an ex parte decree was passed against the wife dissolving the marriage between the husband and wife. Thereafter, initially she has filed IA No.1525 of 2014 under Section 5 of Limitation Act to condone the delay of 161 days in filing an application to set aside the ex parte decree dated 29.04.2014.

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6. The main averments of the affidavit filed in support of IA No.1525 of 2014 are that the wife has not received summons from the court, accordingly she could not appear before the Court. Thereafter, she was set ex parte. In fact, when she was carrying second pregnancy, she was tortured physically and mentally by her husband, she was driven out of the house and she was forced to stay with her old-aged parents. At that stage, the husband has filed an application for dissolution of the marriage. She could not

pursue the matter as she could not move out of the house because of delivery and consequent medical advice. Thus, there was a delay of 161 days in filing an application, under Order-IX, Rule-13 CPC to set aside the ex parte decree dated 29.04.2014.

7. This application was resisted by the husband, who filed a detailed counter affidavit stating that his wife was aware of the developments, she refused to receive the notice, Court Process Server has made an endorsement to that effect, thereafter on recording the evidence, the trial Court has passed an ex parte divorce. Accordingly, after waiting till appeal time, he performed second marriage with Smt. Vara Lakshmi on 06.12.2014, it was

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registered on 16.12.2014. The petitioner/ wife has failed to show any prudent or reasonable cause. If at this stage, the ex parte decree is set aside, he would suffer irreparable loss and injury and it would cause prejudice to his second wife, who is now conceived and prayed for dismissal of the application.

8. The Court below has allowed the application in IA Nos.1525 of 2014 on 17.06.2015 with one line order stating that "heard, the petitioner explained the cause of delay as pregnancy, hence petition is allowed." It is this order under challenge in CRP No.972 of 2017. Thus the learned Judge, Family Court failed to assign reasons and simply mentioned that the cause of delay is explained as pregnancy, accordingly it was allowed. Consequently, the application in IA No.676 of 2016 was numbered and it was

received. After hearing on both sides, the said application was also allowed on 13.12.2016 with one sentence order to the effect that since IA No.1525 of 2014 under Section 5 of Limitation Act was allowed on 17.06.2015 itself, this application is also allowed without any prejudice on a condition that the wife shall file counter by 30.12.2016, failing which the petition stands dismissed. As per

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the endorsement dated 30.12.2016, counter affidavit was filed and the said petition was allowed. This order is under challenge in CRP No.1019 of 2017.

9. Heard learned counsel for the petitioner and the respondent. Perused the material available on record.

10. On a perusal of the ex parte decree dated 29.04.2014, the only basis for granting decree of divorce in favour of the husband is the affidavit filed by him as PW.1 and Exs.P.1 and P.2 which are wedding card and marriage photos. No other material is placed before the trial Court.

11. In similar circumstances, at paragraph No.7 of the judgment in Miryala Kavitha v. Miryala Krishnaiah¹, this Court has held thus:

"It is rather unfortunate that such evidence weighed with the Presiding Officer, herself being a woman, and a decree was granted without any consideration or appreciation of the matter. Time and again, the Supreme Court held that even where the defendant in a suit remained ex parte, the Trial Court is not relieved of its obligation to record findings of various aspects that fall for consideration. Absence of the

defendant by itself does not entitle a Trial Court to grant a

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decree as prayed for. Such a course of action would be contrary to the very adjudicatory process. That, however, is a different aspect touching on the merits of the decree."

12. The petitioner/wife, who is the respondent herein, has approached the trial Court with an application in IA No.1575 of 2014 to condone the delay that had occurred. She has specifically pleaded that she has not received the notice, she was driven out of the house while she was carrying 7th month pregnancy and she was compelled to stay with her old-aged parents. But, the record speaks that based on the Process Server's report, on 11.04.2014 she was set ex parte. As per the Process Server's report, when he wanted to serve notice, she refused. Accordingly, he could not serve the notice.

13. Be that as it may, in his entire counter affidavit, the petitioner/husband has not denied the factum that his wife was carrying 7th month pregnancy and she gave birth to a child and that she was living with her parents during the relevant point of time.

14. It is the case of the respondent/wife that she was living with her parents, with a hope that her husband may come to see her and

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their child, but to her utter dismay, she came to know that he has obtained an ex parte decree dissolving their marriage. Then she has approached the Court and filed the application under Section 5 of Limitation Act to condone the delay of 161 days. Another application was also filed to set aside the ex parte decree dissolving the said marriage.

15. It was not as if the OP was pending for years together or that the petitioner has approached the Court after inordinate delay. In fact, the Court below though not assigned reasons, has rightly concluded that the wife has failed to attend the Court due to pregnancy and accordingly the delay of 161 of days is condoned. I find no reason to interfere with the order impugned in condoning the delay.

16. While dealing with the applications filed under Order-IX, Rule-13 of CPC, the Hon'ble Supreme Court of India in Parimal v. Veena @ Bharti², held thus:

"Approach of the Court while dealing with such an application under Order IX Rule 13 C.P.C. would be liberal

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(2011) 3 SCC 545

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and elastic rather than narrow and pedantic. However, in case the matter does not fall within the four corners of Order IX Rule 13, the Court has no jurisdiction to set aside ex parte decree. The manner in which the language of the second proviso to Order IX Rule 13 C.P.C. has been couched by the legislature makes it obligatory on the appellate court not to interfere with an ex parte decree unless it meets the statutory requirement. It was not

permissible for the High Court to take into consideration the conduct of the appellant subsequent to passing of the ex parte decree."

17. It was a case in which the spouse who obtained the ex parte decree had remarried. The Hon'ble Supreme Court declined to take into account the remarriage of the spouse as a relevant factor in deciding the merits of an application filed for setting aside the ex parte decree of divorce. Accordingly, while seeking guidance from the above, I am of the firm view that mere re-marriage of the petitioner-husband who obtained ex parte decree of divorce will not render the application to set aside the ex parte decree filed by the wife-opposite spouse infructuous. Re-marriage of the spouse is not a relevant factor to be taken into account in deciding the merits of the application filed for setting aside the ex parte decree of divorce. The application under Order-IX, Rule-13 of CPC has to

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be considered on its own merits within the four corners of that provision.

18. The another argument of the learned counsel for petitioner is that in view of Section 28 (4) of the Hindu Marriage Act and in view of savings Clause under Section 29(3), Section 5 of the Limitation Act does not apply and the learned trial Court has erred in applying the provisions of Section 5 of the Limitation Act. A learned Single Judge of this Court in the decision in Miryala Kavitha's case (first supra), has clearly held that the provisions of Section 5 of Limitation Act would apply to the proceedings under

the Hindu Marriage Act, and an appeal is also maintainable if it is filed beyond the period of 30 days. At that time, 30 days was specified as limitation period under Section 28(4) of the Hindu Marriage Act. The Hon'ble Supreme Court in Tejinder Kaur v. Gurmit Singh³ and in Lata Kamat v. Vilas⁴, held that the party appealing under Section 28(4) of the Hindu Marriage Act is also entitled for exclusion of the time taken by it for obtaining the certified copies of the decree. In Lata Kamat's case (fourth supra),

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(1988) 2 SCC 90

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(1989) 2 SCC 613

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the Hon'ble Supreme Court has dealt with the interpretation of suit or other proceedings under Section 29(3) of Limitation Act and held that the impact of sub-section (3) is concerned, will be that the provisions of Limitation Act will be applied insofar as suit or other original proceedings under the Act are concerned, but sub-section (3) will not govern an appeal. The Hon'ble Supreme Court in M/s. Sahara India and others v. M.C. Aggarwal Huf 5, held that where no opportunity of hearing has been given and an ex parte order has been passed, the Court should not lose sight of the fact that prejudice will be caused to the other side and consequently restored the case.

19. In the case on hand, the trial Court has clearly recorded that the petitioner/wife was carrying pregnancy and it is sufficient cause for her in not attending the Court, the wife was with a hope that her

husband may come to see her and their child, thereafter, when she came to know about the ex parte decree for dissolution of marriage, she approached the Court and filed the application under Section 5 of Limitation Act along with the application under Order-IX, Rule-

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2007 (11) SCC 800

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13 CPC. There cannot be any straight-jacket formula of universal application to condone the delay. "Sufficient Cause" under Section 5 of Limitation Act is only a question of fact and the Court has to exercise its judicious discretion to meet the ends of justice. Though under Section 15 of Hindu Marriage Act, a divorced person is entitled to marry again after expiry of appeal time, that by itself does not make the application filed either under Section 5 of Limitation Act or under Order-IX, Rule-13 CPC infructuous.

20. In the present case, the respondent/wife is able to explain the delay of 161 days stating that she was driven away out of the house of her husband, when she was carrying 7th month of second pregnancy. After she gave birth to a child, her husband failed to see her, then she came to know that he has obtained an ex parte divorce, notice was served on the divorce OP to her.

21. Therefore, in such facts and circumstances of the case, while relying on the principles laid by this Court in Miryala Kavitha's case (first supra) and the judgments of the Hon'ble Supreme Court cited above, I hold that the orders impugned are sustainable and

they do not warrant any interference by this Court, consequently,
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the orders impugned passed in IA Nos.1525 of 2014 dated
17.06.2015 condoning the delay of 161 days and consequently
allowing IA No.676 of 2016 as per the orders dated 13.12.2016
under Order-9, Rule-13 CPC are sustainable.

22. In the result, both the Civil Revision Petitions are dismissed.
However, there shall be no order as to costs.

As a sequel, interlocutory applications, if any pending, shall
stand closed.

A. VENKATESHWARA REDDY, J.

Date: 25.02.2022 Isn